CNR : KLHC010539062019

2026:KER:59882

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE GOPINATH P.

WEDNESDAY, THE 5TH DAY OF AUGUST 2026 / 14TH SRAVANA, 1948

WP(C) NO. 21029 OF 2019

PETITIONERS:

1 **P.K.SUDHAKARAN NAIR,**
AGED 72 YEARS, S/O.P.K.NARAYANA PILLAI,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/1185,
KARTHIKA, NELLIPPILLIL, VAZHIKULANGARA,
N.PARAVUR - 683513.

2 **M.K.SASI,**
AGED 59 YEARS, S/O.M.R.KRISHNANKUTTY,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/000/000745,
MARUNNINAKULATH HOUSE, CHERIYAPALLAMTHURUTH,
NORTH PARAVUR, PIN - 683 513.

3 **T.K.GOPI,**
AGED 62 YEARS, S/O.T.N.KRISHNAN,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/000/846,
THAZTHEKUDY, THRIKKARIYOOR P.O., KOTHAMANGALAM.

4 **RENJITH BABU R.P.,**
AGED 59 YEARS, S/O.PANKAJAKSHAN NAIR,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/758,
KRISHNA KRIPA, NARAKAL P.O., PIN – 682 505.

5 **M.PAREETH,**
AGED 68 YEARS, S/O.B.MOIDEEN,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/473,
FATHIMA MANZIL, CHENGARA, PATTIMATTOM P.O.,
PIN - 683 562.

6 THOMAS JOSEPH,
AGED 64 YEARS, S/O.JOSEPH,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.),
P.F. A/C NO.KR/TVM/0001532/000/0000739,
EMPRAYIL HOUSE, PARATHODE P.O., KANJIRAPALLY, KOTTAYAM DIST.

7 PHILIP DAVID,
AGED 61 YEARS, S/O.DAVID,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/0001532/000/000850,
PAYYAMPALLIL HOUSE, PARATHODE P.O., KANJIRAPPALLY, KOTTAYAM DIST. - 686 512.

8 P.K.TENNY,
AGED 57 YEARS, S/O.P.O.KUNJUVAREETH,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C.NO.KR/1532/898, PORAYI HOUSE,
VISWANATHAPURAM TEMPLE ROAD, IRNGALAKKUDA P.O., PIN - 680 121.

9 LILLY P.ISSAC,
AGED 59 YEARS, W/O.THAMPI P.CHERIAN,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C.NO.KR/TVM/1532/965,
PALACKAL HOUSE, THALACODE P.O., MULANTHURUTHY, PIN - 682 314.

10 K.NIRMALADEVI,
AGED 68 YEARS, W/O.VIJAYAN,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C.NO.KR/1532/862,
THANNIKKAL HOUSE, ELAMKULAM, KALOOR, KADAVANTHRA ROAD, COCHIN - 17.

11 P.A.JAMAL,
AGED 58 YEARS, S/O.ALIKUTTY E.K.,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C. NO. KR/ TVM/1532/1697,
PULPARAYIL HOUSE, KANJIRAMATTOM P.O., PIN – 682 315.

12 **P.A.SOSA,**
AGED 69 YEARS, W/O.VARGHESE A.T.,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C.NO.KR/TVM/1532/500,
38/2353, AMBALATHINKAL HOUSE, MATHA CHURCH ROAD,
KALOOR, KOCHI -17.

13 **K.R.MALATHY,**
AGED 71 YEARS, W/O.T.A.NANDIKESAN,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C.NO.KR/1532/520,
KEERIKKATTU HOUSE, VATTAKUNNU P.O.,
CHOTTANIKKARA.

14 **P.F.JOSY,**
AGED 62 YEARS, S/O.FRANCIS,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/000/001619,
PUTHANPURAKKAL HOUSE, NAMBIAPURAM ROAD,
PALLURUTHY, KOCHI - 6.

15 **K.KUNJAPPAN ASARI,**
AGED 71 YEARS, S/O.K.N.UNNI ASSARI,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/1532/505,
ALOORPARAYIL HOUSE, PAZHOOR EAST, PIRAVAM P.O.,
PIN - 686 664.

16 **P.R.DAMODARAN BHATTATHIRI,**
AGED 66 YEARS, S/O.RAMAN BHATTATHIRI,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/00001532/000/0001553, PALYAT MANA,
PIRAVOM P.O., PIN - 686 664.

17 **K.G.REMA,**
AGED 60 YEARS, W/O.K.G.NARAYANAN,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/KTM/1532/000/746,
KALARIKKAL HOUSE, KANJIRAMATTOM P.O.,
PIN - 682 315.

18 T.R.SOLOMON,
AGED 65 YEARS, S/O.ROCKY T.R.,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/000/1180, THATTASSERY HOUSE, CITIZEN ROAD, KOCHI - 18.

19 K.T.PREMALATHA,
AGED 63 YEARS, W/O.T.P.VENUGOPALAN NAIR,
KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/0001532/000/0000750, THURUTHIYIL HOUSE, PADAMUGAL, COCHIN -30.

20 M.RAJALAKSHMI,
AGED 60 YEARS
W/O.K.S.SREEKUMAR, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/KTM/1532/749, HOUSE NO.35/1120F, SREESAILAM, BMRA 127 A, BALAKRISHNA MENON ROAD, EDAPPALLY P.O., PIN - 682 024.

21 DAISY JOSEPH,
AGED 65 YEARS
W/O.P.A.KURIAKOSE, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/000/0001179, POOMULLI HOUSE, DESABHIMANI ROAD, KALOOR, KOCHI - 17.

22 MOHANBABU N.R.,
AGED 65 YEARS
C/O.RAMAKRISHNAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/0001532/000/0001211, NAISSERY HOUSE, VELUKKARA, NADAVARAMBU, TRICHUR - 680 661.

23 SHAILAKUMARI K.K.,
AGED 66 YEARS
W/O.P.K.MOHANAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/000/0000730, POOTHULIL HOUSE, PONNURUNNI, THAMMANAM P.O., KOCHI – 32.

24 **N.G.UMA,**
AGED 66 YEARS
W/O.P.S.SREEKUMAR, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/0001532/000/0000870, SRIVILAS, KUMBALANGI VAZHI, PALLURUTHY, KOCHI - 6.

25 **M.N.INDHUMUGHI,**
AGED 61 YEARS
W/O.BAIJU T.A., KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/970, H.NO.10/899, S.S.KRISHNAN ROAD, AMARAVATHY, KOCHI - 1.

26 **SARAMMA PETER,**
AGED 71 YEARS
W/O.C.P.PETER, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/1532/792. CHETTIYATH (H), MATTAKUZHI, VARIKOLI P.O., ERNAKULAM DT., PIN - 682 308.

27 **V.E.JANE,**
AGED 68 YEARS
W/O.T.A.JOSEPH, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/921, THYVELIKAKATH HOUSE, H.NO.15/2052, NAZRETH, KOCHI - 2.

28 **T.K.SREEKUMARI,**
AGED 62 YEARS
W/O.K.G.SANANDAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/737, SAYOOJYA, MANNANCHERI P.O., ALAPPUZHA - 688 538.

29 **SHEELA JOSE,**
AGED 67 YEARS
W/O.JOSLINE M.X., KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/0001532/000/0000877, MUTTUNGAL HOUSE, CHERIYAKADAVU, KANNAMALY, KOCHI- 8.

30 **G.SUDHARMA,**
AGED 60 YEARS
W/O.N.OMANAKUTTAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/874, POURNAMI, VALLIKEEZHU, ALATTUKAVU NAGAR -10, KAVANAD P.O., KOLLAM.

31 **T.S.MOLY,**
AGED 64 YEARS
W/O.M.J.GEEVARGHESE, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/000/915, MANAYATH HOUSE, NELLIKUZHI P.O., KOTHAMANGALAM.

32 **K.N.SHOBANA,**
AGED 59 YEARS
W/O.K.P.NARAYANA PILLAI, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/938, KAPPILLIL HOUSE, VALAYAMCHIRANGARA P.O., PERUMBAVOOR - 683 556.

33 **P.RAJALAKSHMI,**
AGED 60 YEARS
W/O.N.SIVASANKARAN KARTHA, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/00F/0000070, INDRADHANUS, VALAYAMCHIRANGARA P.O., PERUMBAVOOR - 683 556.

34 **P.R.DAYANANDAN,**
AGED 68 YEARS
S/O.P.K.RAGHAVAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F A/C NO.KR/1532/1038, PUTHANPURAKKAL HOUSE, MUHAMMA P.O., ALAPPUZHA - 688 525.

35 **JOY FRANCIS,**
AGED 65 YEARS
S/O.LATE P.J.FRANCIS, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/0001532/000/0001210, PANDARAKALAM HOUSE, KARINKUNNAM P.O., THODUPUZHA - 685 586.

36 M.AMBIKADEVI,
AGED 67 YEARS
W/O.P.M.RADHAKRISHNAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD), P.F. A/C NO.KR/TVM/1532/000/000733, MANNATHU MADOM, KORAMBISSERY, IRINJALAKUDA, PIN - 680 121.

37 K.O.WILSON,
AGED 60 YEARS
S/O.K.R.OUSEPH, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F A/C NO.KR/TVM/1532/000/0001178, KOONAMMAVU HOUSE, VALLAKKUNNU, KALLETTUMKARA P.O., THRISSUR - 683 683.

38 T.M.ABDUL KHADAR,
AGED 68 YEARS
S/O.T.K.MOIDEEN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/1532/1186, THAZHATHUPURATHU VEEDU, SREEMOOLANGARAM P.O., VIA ALUVA, PIN - 683 580.

39 SANTHA N.R.,
AGED 63 YEARS
W/O.K.N.BOSE, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/000/0001168, KATTIPARAMBIL HOUSE, MALIANKARA, MOOTHAKUNNAM P.O. - 683 516.

40 N.N.SHAJI,
AGED 68 YEARS
S/O.P.NARAYANAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F A/C NO.KR/TVM/1532/000/0000801, NEELIMA, PARAT LANE, N.H.ROAD, ALUVA.

41 V.A.RAJAPPAN,
AGED 68 YEARS
S/O.V.S.AYYAPPAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F A/C NO.KR/1532/566, VELUMPARAMBIL HOUSE, KODUSSERY, VATTAPARAMBU P.O., ANGAMALY - 683 579.

42 B.P.PONNAPPAN,
AGED 66 YEARS
S/O.B.K.PARAMESWARAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F A/C NO. KR/TVM/0001532/000/0000791, BLAVATHU PARAMBIL HOUSE, PANAMBUKKAD, VALLARPADAM P.O., PIN - 682 504.

43 M.PARAMESWARAN NAIR,
AGED 71 YEARS
S/O.NARAYANAN NAIR, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F A/C NO.KR/1532/1811, MOOZHIKKULATH HOUSE, PULIYANAM P.O., ANGAMALY - 683 572.

44 T.A.RAJENDRAN,
AGED 63 YEARS
S/O.T.APPUNNI, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/691, THENKINGAL HOUSE, MOORKANIKARA, KOZHUKULLY P.O., THRISSUR - 680 751.

45 M.UNNIKRISHNAN,
AGED 67 YEARS
S/O.M.NARAYANAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/KCH/0001532/00F/0000053, MANIYANTHOTTIL HOUSE, NAZARATH ANGADI NELLIKKUNNU P.O., JUBILEE MISSION HOSPITAL, EAST FORT, THRISSUR - 680 005.

46 N.K.KALLIANI,
AGED 67 YEARS
W/O.C.P.RAJAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/KCH/1532/00F/0000068, CHELANGATTU HOUSE, ARIMPUR, THRISSUR.

47 **GEORGE K.A.,**
AGED 72 YEARS
S/O.P.T.ANTONY, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/1634, KANNAMPUZHA HOUSE, THANNIKKAL, KEERTHINAGAR ROAD, ELAMAKKARA, COCHIN - 26.

48 **V.A.USHA,**
AGED 62 YEARS
W/O.K.K.VELAYUDHAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED , P.F. A/C NO.KR/TVM/0001532/000/0000506, KIDANGAL HOUSE, KOTTAPPURAM, KORATTY P.O., TRICHUR - 680 308.

49 **A.J.DAVIS,**
AGED 72 YEARS
S/O.A.K.JOSEPH, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/1532/483, AKKARAKKARAN HOUSE, TC/51/3029, INDUSTRIAL ESTATE P.O., THIRUVANANTHAPURAM, PIN - 695 019.

50 **V.K.MOHINI,**
AGED 64 YEARS
W/O.M.G.GOPIKRISHNAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/000743, MALIYAM HOUSE, PALLURUTHY NADA, KOCHI - 6.

51 **K.PRAMEELA BHAYI,**
AGED 61 YEARS
D/O.BALAN NAIR M., KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/882, M.C.HOUSE, NOCHAD P.O., KOZHIKODE.

52 **SREEDEVI AMMA M.,**
AGED 62 YEARS
W/O.K.R.SASIDHARAN PILLAI, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/000/0000851. KALIKKALETH, VENMONY ERAM, VENMONY P.O.,
CHENGANNUR - 689 509.

53 N.M.LALITHA,
AGED 63 YEARS
W/O.SREENIVASAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/0001532/000/0000747, SREELAKOM, KALATHILTHODY, ATHANIKAL WEST, WEST HILL P.O., KOZHIKODE - 673 005.

54 K.M.MUKUNDAN,
AGED 65 YEARS
S/O.KRISHNAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED(RTD.), P.F. A/C NO.KR/TVM/1532/762, ANKATHAYI HOUSE, ERAVANNUR P.O., VIA NARIKKUNI, KOZHIKODE - 673 585.

55 T.MOHANAKUMAR,
AGED 67 YEARS
S/O.T.GOPALAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED(RTD.), P.F. A/C NO.KR/TVM/0001532/000/0000804, SAI DARSAN, MAKKADA P.O., KOODATHUMPOYIL, KAKKODI, KOZHIKODE, PIN - 673 611.

56 PRASANNA BAI E.P.,
AGED 69 YEARS
D/O.E.P.CHOYKUTTY, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/789, JAYARAM NIVAS, KARAPARAMBA, KOZHIKODE, PIN - 673 010.

57 SURESHKUMAR A.T.,
AGED 57 YEARS
S/O.RAGHAVAN A.T., KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/KKD/0001532/00D/0000204, VARSHA, CHERUVALATHU PARAMBA, MEDICAL COLLEGE P.O., KOZHIKODE, PIN- 673 008.

58 **STANDLY ALROY SIMON,**
AGED 63 YEARS
S/O.PETER SIMON, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/0001532000/0000729, EDATHATTIL HOUSE, MUNDANVELI P.O., KOCHI - 682 507.

59 **RITA K.F.,**
AGED 65 YEARS
W/O.C.M.VALENTINE, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED(RTD.), P.F. A/C NO.KR/TVM/0001532/000/0000884, CHERIYIL HOUSE, P.B.K.MYNA ROAD, VAZHAKKALA, THRIKKAKKARA P.O., COCHIN - 682 021.

60 **C.U.BABU,**
AGED 55 YEARS
S/O.UTHANDRAMAN PILLAI O.C., KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/597, TC-7/205, AISWARYA, KALLAMPALLY, SREEKARYAM P.O., TRIVANDRUM - 695 017.

61 **ABDUL REHIMAN P.,**
AGED 65 YEARS
S/O.PAREETH K., KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED(RTD.), P.F. A/C NO.KR/TVM/0001532/000/0000803, EATHAPARAMBIL HOUSE, WEST KADUNGALLOOR, ALUVA.

62 **JOHN K.J.,**
AGED 72 YEARS
S/O.K.M.JOHN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVN/1532/1623, KATTUMANGHATTU, CHOTTANIKKARA - 682 312.

63 **A.RAVEENDRAN,**
AGED 71 YEARS
S/O.P.P.ANDY, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/485, JAYA NIVAS, INDIRA JN., THATHAMPILLY P.O., ALAPPUZHA.

64 **P.RAVEENDRAN,**
AGED 68 YEARS
S/O.G.PARAMESWARAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/1193, REVATHY, ARATTUVAZHI, OPP. GOVT. GUEST HOUSE, ALAPPUZHA.

65 **C.R.JAYACHANDRA VARMA,**
AGED 74 YEARS
S/O.R.RAJARAJA VARMA, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/672, ARCHA, NEAR DEVI HOSPITAL, NORTH FORT, THRIPUNITHURA, PIN -682 301.

66 **RAMESAN R.,**
AGED 64 YEARS
S/O.P.RAMAN PILLAI, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.) , P.F. A/C NO.KR/1532/686, RAGAM, ROSE GARDEN COLONY, PALARIVATTOM, KOCHI - 25.

67 **P.K.RAVEENDRAN,**
AGED 70 YEARS
S/O.KUNJAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/1532/1140, PADIVATTOM HOUSE, XVII/382, AROOR P.O., CHERTHALA VIA., ALAPPUZHA DT., PIN - 688 534.

68 **SHELLY P.ISSAC,**
AGED 50 YEARS
S/O.KURUVILA P.E., KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/897, PARAVELIKUDI HOUSE, UNION BANK ROAD, PERUMBAVOOR - 683 542.

69 **N.S.THULASEEDHARAN,**
AGED 59 YEARS
S/O.N.I.SANKARAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/000/1561, NARIVELIL, PRANAVAM, PANANGAD P.O., PIN - 682 506.

70 **K.VENUGOPALAN,**
AGED 59 YEARS
S.O.K.DAMODARAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/1532-D/199, SREEVINAYAKA HOUSE, SREENAGAR, MULLAMPARA, MANJERI P.O., PIN - 676 121.

71 **C.SREEKUMAR,**
AGED 59 YEARS
S/O.CHANDRASEKHARAN NAIR M.P., KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/KKD/1532/00D/0000206, SREESUMAM, KUNIYEDATH THAZHAM, MARYKUNNU P.O., KOZHIKKODE - 673 012.

72 **V.V.DILEEP,**
AGED 60 YEARS
S/O.K.VELAYUDHAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/1627, VELIYATH HOUSE, PADIVATTOM, EDAPPALLY P.O. - 682 024.

73 **P.O.OUSEPH,**
AGED 68 YEARS
S/O.P.O.OUSEPH, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/1532/1559, LISIEUX, PARAPPILLY, MNR-134, MAVELINAGAR, CHANGAMPUZHA NAGAR P.O., KOCHI - 682 033.

74 **P.V.VIJAYAN,**
AGED 65 YEARS
S/O.P.KUNJIRAMAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/823, VISHAKHAM, POOKOTTU NADA, THALIPARAMBU - 670 141.

75 **PRADEEP V.,**
AGED 60 YEARS
S/O.KRISHNAN V., KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED, P.F. A/C NO.KR/TVM/1532/000/0000879, INDUDEEPAM, ALANKODE HOUSING COLONY, P.O.RAMDAS NAGAR, KASARGODE - 671 124.

76 **K.SADANANDAN,**
AGED 69 YEARS
S/O.KUTTAN RAGHAVAN, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/1191, MANALAYIL HOUSE, PULIMKUNNU P.O., ALAPPUZHA - 688 504.

77 **JOSEPH MATHEW,**
AGED 59 YEARS
S/O.K.C.MATHEW, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/0001532/000/0000859, ANUGRAHA, 30/92B, KSHB ROAD, MEDICAL COLLEGE P.O., KOZHIKODE - 673 008.

78 **K.J.THANKAPPAN,**
AGED 66 YEARS
S/O.K.JOSEPH, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/0001532/000/0000599, KORACKENPARAYIL HOUSE, PARAMPUZHA P.O., KOTTAYAM - 686 004.

79 **JAMES JOSE,**
AGED 57 YEARS
S/O.JOSEPH, KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION LIMITED (RTD.), P.F. A/C NO.KR/TVM/1532/1160, KOTTARATHIL HOUSE, PERUMPILLICHIRA P.O., THODUPUZHA - 685 605.

BY ADVS.
SRI.R.SANJITH
SMT.C.S.SINDHU KRISHNAH

RESPONDENTS:

1 **THE EMPLOYEES PROVIDENT FUND ORGANISATION, REPRESENTED BY THE CHIEF PROVIDENT COMMISSIONER, BHAVISHYA NIDHI BHAVAN, 14, BHIKAJI CAMA PALACE, NEW DELHI – 110 066.**

**2 REGIONAL PROVIDENT FUND COMMISSIONER,
THE EMPLOYEES PROVIDENT FUND ORGANISATION,
PATTOM, THIRUVANANTHAPURAM - 695 004.**

**3 ASSISTANT PROVIDENT FUND COMMISSIONER (LEGAL),
OFFICE OF THE REGIONAL PROVIDENT FUND
COMMISSIONER, THE EMPLOYEES PROVIDENT FUND
ORGANISATION, PATTOM,
THIRUVANANTHAPURAM - 695 004.**

**4 KERALA SMALL INDUSTRIES DEVELOPMENT CORPORATION
LIMITED HOUSING BOARD BUILDING SANTHINAGAR,
THIRUVANANTHAPURAM - 695 001,
REPRESENTED BY ITS MANAGING DIRECTOR.**

**BY ADVS.
SRI.P.U.SHAILAJAN (FOR R4)
SMT.NITA.N.S. (SC) (FOR R1 TO R3)**

THIS WRIT PETITION (CIVIL) HAVING COME UP FOR ADMISSION ON 05.08.2026, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

<u>JUDGMENT</u>

The petitioners are retired employees of the 4th respondent. They are before this Court challenging Exts.P3, P3(a), P3(b), P5, P5(a) and P5(b), which are communications issued by the Provident Fund Department rejecting the options submitted by the petitioners for grant of higher pension based on the actual salary that has been paid to them by the 4th respondent under the Employees' Pension Scheme, 1995. It is the case of the petitioners that, if there is any shortfall in the contributions paid on the actual salary by the 4th respondent, they are entitled to make up the shortfall now and receive pension based on the actual salary.

2. Under Paragraph 2(f) of the Employees' Provident Fund Scheme, 1952 (hereinafter referred to as the 1952 Scheme), an *'Excluded employee'* is outside the purview of the scheme and the employer is under no obligation to pay contributions in respect of such an

employee. Under Paragraph 2(f) (to the extent relevant) *'excluded employee'* means -

> *"(ii) an employee whose pay at the time he is otherwise entitled to become a member of the Fund, exceeds fifteen thousand rupees per month;*
>
> *Explanation - 'pay' includes basic wages with dearness allowance, retaining allowance (if any) and cash value of food concession admissible thereon."*

However, in terms of Paragraph 26(6) of the 1952 Scheme, an option was given to the employer and the employee to submit a joint option to contribute on wages exceeding the ceiling limit[1] specified in the definition of excluded employee in Paragraph 2(f).

> "26(6) *Notwithstanding anything contained in this paragraph, an officer not below the rank of an Assistant Provident Fund Commissioner may, on the joint request in writing of any employee of a factory or other establishment to which this Scheme applies and his employer, enroll such employee as a member or allow him to contribute more than Rupees Fifteen Thousand of his pay per month if he is already a member of the fund and thereupon such employee shall be entitled to the benefits and shall be subject to the conditions of the fund, provided that the employer gives an undertaking in writing that he shall pay the administrative*

1The ceiling limit prescribed in paragraph 2(f) was Rs.5000 till 31.05.2001, Rs. 6500 from 01.06.2001 to 31.8.2014 and is Rs.15,000 from 01.09.2014

> *charges payable and shall comply with all statutory provisions in respect of such employee."*

It is clear from a reading of Paragraph 26(6) that the option to make contribution on actual salary was purely optional and there is no statutory compulsion to enrol employees drawing wages above the ceiling limit.

3. In the Employees Pension Scheme, 1995 (hereinafter referred to as the Pension Scheme), as it stood prior to 01.09.2014, the proviso to paragraph 11(3) provided a similar option to make contributions to the pension scheme on the basis of actual salary. The provision as it stood prior to 01.09.2014 reads thus:-

> *"11. Determination of Pensionable Salary—*
>
> *(1) The pensionable salary shall be the average monthly pay drawn in any manner including on piece-rate basis during contributory period of service in the span of 12 months preceding the date of exit from the membership of the Employees' Pension Fund:*
>
> *Provided that if a member was not in receipt of full pay during the period of twelve months preceding the day he ceased to be the member of the Pension Fund, the average of previous 12 months full pay drawn by him during the period*

> *for which contribution to the pension fund was recovered, shall be taken into account as pensionable salary for calculating pension.*
>
> *(2) If during the said span of 12 months there are non-contributory periods of service including cases where the member has drawn salary for a part of the month, the total wages during the 12 months' span shall be divided by the actual number of days for which salary has been drawn and the amount so derived shall be multiplied by 30 to work out the average monthly pay.*
>
> *(3) The maximum pensionable salary shall be limited to rupees six thousand five hundred per month.*
>
> *Provided that if at the option of the employer and employee, contribution paid on salary exceeding rupees six thousand and five hundred per month from the date of commencement of this Scheme or from the date salary exceeds rupees six thousand five hundred, whichever is later, and 8.33% share of the employers thereof is remitted into the Pension Fund, pensionable salary shall be based on such higher salary."*

In ***R.C. Gupta v. Regional Provident Fund Commissioner, Employees' Provident Fund Organization**, **(2018) 14 SCC 809**,* a question arose regarding the interpretation to be placed on the proviso to Paragraph 11(3) of the Pension Scheme. The issue arose as the provident fund Department contended for the position that the option to be exercised in terms of the proviso to Paragraph 11(3) of the Pension Scheme had to be exercised either at the time of commencement of the Scheme (if the wages of the employee at that time exceeded the ceiling limit) or at a point in time when the wages had exceeded the ceiling limit (after the employee had become a member of the Pension Scheme), whichever is later, and on failure to exercise such option within the specified time, the benefit of the proviso could not be extended. This stand of the provident fund Department was categorically rejected by the Supreme Court in ***R.C. Gupta*** *(supra)*. It was held:

> *"7. Reading the proviso, we find that the reference to the date of commencement of the Scheme or the date on which the wages exceeds the ceiling limit are dates from which the option exercised are to be reckoned with for calculation of pensionable salary. The said dates are not cut-off dates to determine the eligibility of the employer-employee to indicate their option under the proviso to Clause 11(3) of the Pension Scheme. A somewhat similar view that has been taken by this Court in a matter coming from the Kerala High Court, wherein Special Leave Petition (C) No. 7074 of 2014 filed by the Regional provident fund Commissioner was rejected by this Court by order dated 31-3-2016. A beneficial scheme, in our considered view, ought not to be allowed to be defeated*

by reference to a cut-off date, particularly, in a situation where (as in the present case) the employer had deposited 12% of the actual salary and not 12% of the ceiling limit of Rs 5000 or Rs 6500 per month, as the case may be.

8. A further argument has been made on behalf of the provident fund Commissioner that the appellant employees had already exercised their option under para 26(6) of the Employees' provident funds Scheme. Para 26(6) is in the following terms:

“.....”

9. We do not see how exercise of option under para 26 of the provident fund Scheme can be construed to estop the employees from exercising a similar option under para 11(3). If both the employer and the employee opt for deposit against the actual wages and not the ceiling amount, ***exercise of option under para 26 of the Provident Scheme is inevitable****. Exercise of the option under para 26(6) is a necessary precursor to the exercise of option under Clause 11(3). Exercise of such option, therefore, would not foreclose the exercise of a further option under Clause 11(3) of the Pension Scheme unless the circumstances warranting such foreclosure are clearly indicated.* ***(emphasis supplied)***

10. The above apart in a situation where the deposit of the employer's share at 12% has been on the actual salary and not the ceiling amount, we do not see how the provident fund Commissioner could have been aggrieved to file the LPA before the Division Bench of the High Court. All that the provident fund Commissioner is required to do in the case is an adjustment of accounts which in turn would have benefited some of the employees. At best what the Provident Commissioner could do and which we permit him to do under the present order is to seek a return of all such amounts that the employees concerned may have taken or withdrawn from their provident fund account before granting them the benefit of the proviso to Clause 11(3) of the Pension Scheme.

> *Once such a return is made in whichever cases such return is due, consequential benefits in terms of this order will be granted to the said employees."*

After the amendment to Paragraph 11 of the Pension Scheme w.e.f 01.09.2014, the proviso to Paragraph 11(3) was omitted and the benefit of option to receive pension on actual wages was restricted to those who had been contributing on actual wages (beyond ceiling limit) as on 01.09.2014. (See Paragraph 11(4) of the Pension Scheme introduced vide amendment w.e.f 01.09.2014). The amendments brought into force w.e.f 01.09.2014 were the subject matter of challenge before various High Courts and the issues that arose on account of the amendments were settled by the Supreme Court in ***Employees' Provident Fund Organization v. Sunil Kumar B., 2022 (7) KHC 12.***

4. In so far as the petitioners herein are concerned, it is not in dispute before me that, during the period of their service under the 4th respondent, contributions

payable in terms of the provisions contained in the Employees Provident Funds and Miscellaneous Provisions Act, 1952 (hereinafter referred to as the “1952 Act”) and the 1952 Scheme and the Pension Scheme were paid on the actual salary drawn by the petitioners for the period from 1995 to 2002. However, from April 2002 till July 2010, the contributions were made only on the actual salary and with reference to the ceiling limit. Thereafter, from July 2010 till the exit of the petitioners from the 1952 Scheme and the Pension Scheme, contributions were not made on their actual salary but only on a sum of Rs.20,000/-.

5. The learned counsel appearing for the petitioners would submit that the 1952 Act and the Schemes framed thereunder are beneficial legislations. It is submitted that when the contributions were based on their actual salary from 1995 to 2002, the employer could not have restricted contributions to the statutory ceiling limit from April 2002 to July 2010. It is submitted that the

employer also could not have restricted the contribution by fixing the limit at Rs.20,000/- for the period after July 2010. It is submitted that once the employer started paying contributions on actual salary without reference to the ceiling limit, such contributions ought to have been made for the entire period of service for persons like the petitioners. It is submitted that the petitioners are now receiving only a paltry amount as pension, which is not sufficient for their sustenance. It is submitted that the Provident Fund department ought to have initiated proceedings under Section 7A of the 1952 Act to determine the contributions payable by the 4th respondent on actual salary and should have demanded and recovered such amount from the 4th respondent. It is submitted that the provisions of Section 12 of the 1952 Act indicate that the employer cannot reduce wages etc. It is submitted that the provisions of Section 12 of the 1952 Act apply to the facts of this case, and that the reduction in contributions for the period from April 2002 to July 2010 (paid only with reference to the ceiling limit) and from July 2010 till the date of exit of the petitioners from the 1952 Scheme and the Pension Scheme (paid on a flat sum of Rs.20,000/-) is not permissible. It is submitted that the judgment of the Supreme Court in ***The Regional Provident Fund Commissioner (II), West Bengal and Others v. Vivekananda Vidyamandir and Others, (2020) 17 SCC 643,*** is authority for the proposition that contribution has to be paid on wages as defined for the purposes of the 1952 Act and the Schemes framed thereunder and and that contribution could not have been restricted to an artificial limit of Rs.20,000/- for the period after July 2010. It is submitted that the judgment of this Court in W.P(C)No.3846 of 2019 and connected cases, which is placed on record as Ext.P7 along with the reply affidavit filed by the petitioners, clearly holds that persons like the petitioners are entitled to make up any shortfall. It is therefore submitted that a direction must be issued to the Provident Fund department to determine the shortfall in contributions made by the 4th respondent, and the petitioners must be permitted to make up that shortfall if recovery from the 4th respondent is not possible. It is submitted that the employees were contributing throughout on the basis of actual salary.

6. The learned Standing Counsel appearing for the Employees' Provident Fund Organisation would submit with reference to the counter affidavit filed in this case that the petitioners had earlier approached this Court by filing W.P(C)Nos. 34791 of 2016 and 35790 of 2016 challenging the amendment of the Pension Scheme with effect from 01.09.2014. It is submitted that these writ petitions were disposed of along with connected cases, wherein it was held that the amendment was illegal and liable to be struck down. It is submitted that, after the disposal of the writ petitions earlier filed by the petitioners, they approached the Provident Fund department by filing an application for the revision of their pension reckoning their actual salary. It is submitted that, on verification of

records, it was seen that the 4th respondent had limited its contribution to the ceiling limit of Rs. 6,500/- for the period between April 2002 and April 2010, and thereafter failed to contribute on the basis of actual salary, instead limiting its contribution to a sum of Rs.20,000/-. It is submitted that since admittedly there was no remittance on actual salary for the period from April 2002 till the date of the exit of the petitioners from the 1952 Scheme and the Pension Scheme, they are not entitled to the benefit of the judgment of the Supreme Court in ***R.C. Gupta*** *(supra).* It is submitted that even if some of the the petitioners had retired after 01.09.2014, they are still not entitled to the benefit of Paragraph 11(4) of the Pension Scheme, as amended, or to the benefit of the directions issued in ***Sunil Kumar*** *(supra).* It is submitted that the provisions of Section 7A of the 1952 Act could be invoked only for the purpose of determining whether there was any failure on the part of the 4th respondent to contribute up to the ceiling limit as any contribution beyond the ceiling limit was optional and was not mandatory. It is submitted that the petitioners also cannot be allowed to make up the shortfall, as it is clear from the judgment of the Supreme Court in ***R.C. Gupta*** *(supra)* which was upheld and approved in ***Sunil Kumar*** *(supra)* that contributions on actual salary as contemplated by Paragraph 26(6) of the 1952 Scheme is inevitable. It is submitted that the decision of the Supreme Court in ***Vivekananda Vidyamandir*** *(supra),* on which reliance was placed by the learned counsel for the petitioners, has no application to the facts of the case. It is submitted that Ext.P7 judgment of this Court in W.P(C)No.3846 of 2019 also cannot come to the aid of the petitioners, as that judgment did not consider a situation where there had been an admitted failure to contribute on actual salary for a considerable period, that is, from April 2002 till the date on which the petitioners had exited from the 1952 Scheme and the Pension Scheme.

7. The learned counsel appearing for the 4th respondent submits that after April, 2002, the 4th respondent had taken a decision to limit the Provident Fund contribution to ceiling limit. It is submitted that thereafter, on the basis of compulsion and representations by the employees, for the period after July, 2010, the 4th respondent had agreed to contribute up to a limit of Rs.20,000/-, and since such contribution was also optional, it does not lie in the mouth of the petitioners to contend that such contributions should have been on actual salary and not at the limit of Rs.20,000/-.

8. Having heard the learned counsel appearing for the petitioners, the learned Standing Counsel appearing for the Employees' Provident Fund Organisation and the learned counsel appearing for the 4th respondent, I am of the view that the petitioners are not entitled to the reliefs sought for in the writ petition. At the outset, it must be clarified that the provisions of the 1952 Act and the 1952 Scheme make it clear that the compulsion to make

contributions applies only in respect of employees who fall outside the definition of an '*excluded employee*' in Paragraph 2(f) of the 1952 Scheme. In respect of persons who were drawing salary above the statutory ceiling limit, there was no compulsion to make any contribution under the provisions of the 1952 Act and the Schemes framed thereunder and it was optional on the part of the employer to have contributed on the actual salary. Therefore in the facts of this case, the act of the 4th respondent in limiting its contributions to the ceiling limit from April 2002 to July 2010 and on Rs.20,000/- for the period from July 2010 till the date of exit of the petitioners from the 1952 Scheme and the Pension Scheme cannot be faulted.

9. The contention of the learned counsel appearing for the petitioners that there should have been a determination of the amounts payable by the employer in terms of the provisions contained in Section 7A of the 1952 Act for the period from April 2002 to July 2010 and thereafter cannot be accepted. Section 7A of the 1952 Act

reads as follows:-

*“**7-A. Determination of moneys due from employers**. (1) The Central Provident Fund Commissioner, any Additional Central Provident Fund Commissioner, any Deputy Provident Fund Commissioner, any Regional Provident Fund Commissioner or any Assistant Provident Fund Commissioner, may, by order,-*

(a) in a case where a dispute arises regarding the applicability of this Act to an establishment, decide such dispute; and

(b) determine the amount due from any employer under any provision of this Act, the Scheme or the [Pension] Scheme or the Insurance Scheme, as the case may be,

and for any of the aforesaid purposes may conduct such inquiry as he may deem necessary.];

(2) The officer conducting the inquiry under sub-section (1) shall, for the purposes of such inquiry, have the same powers as are vested in a court under the Code of Civil Procedure, 1908 (5 of 1908), for trying a suit in respect of the following matters, namely-

(a) enforcing the attendance of any person or examining him on oath;

(b) requiring the discovery and production of documents;

(c) receiving evidence on affidavit;

(d) issuing commissions for the examination of witnesses;

and any such inquiry shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228, and for the purpose of section 196, of the Indian Penal Code (45 of 1860).

(3) No order shall be made under sub-section (1), unless [the employer concerned is given a reasonable opportunity of representing his case.

(3-A) Where the employer, employee or any other person required to attend the inquiry under sub-section (1) fails to attend such inquiry without assigning any valid reason or fails to produce any document or to file any report or return when called upon to do so, the officer conducting the inquiry may decide the applicability of the Act or determine the amount due from any employer, as the case may be, on the basis of the evidence adduced during such inquiry and other documents available on record.

(4) Where an order under sub-section (1) is passed against an employer ex parte, he may, within three months from the date of communication of such order, apply to the officer for setting aside such order and if he satisfies the officer that the show-cause notice was not duly served or that he was prevented by any sufficient cause from appearing

when the inquiry was held, the officer shall make an order setting aside his earlier order and shall appoint a date for proceeding with the inquiry:

> *Provided that no such order shall be set aside merely on the ground that there has been an irregularity in the service of the show-cause notice if the officer is satisfied that the employer had notice of the date of hearing and had sufficient time to appear before the officer.*
>
> *Explanation.-Where an appeal has been preferred under this Act against an order passed ex parte and such appeal has been disposed of otherwise than on the ground that the appellant has withdrawn the appeal, no application shall lie under this sub-section for setting aside the ex parte order.*

(5) No order passed under this section shall be set aside on any application under sub-section (4) unless notice thereof has been served on the opposite party."

It is clear from a reading of Section 7A of the 1952 Act that only amounts that were compulsorily payable in terms of the provisions contained in the 1952 Act and the schemes framed thereunder could be adjudicated and recovered in terms of Section 7A of the 1952 Act. In other words, where payment was optional and as in this case where the payment for the period from April 2002 to July 2010 was paid only with reference to the ceiling limit and on Rs.20,000/- from July 2010 till the date of exit of the petitioners in the scheme, it does not appear that the Provident Fund Authorities could have initiated any proceedings under Section 7A of the 1952 Act for the determination of the amounts payable by the employer. In other words, a proceeding under Section 7A of the 1952 Act could be initiated only when there is failure to pay the contributions by an establishment to which the provisions of the 1952 Act and the schemes framed thereunder apply and when there are employees in such establishment, who are drawing salary below the ceiling limit. Taking into consideration the definition of '*excluded employee'* under Paragraph 2(f) of the 1952 Scheme, it is clear that where, for example, where all the employees of an establishment are drawing salary above the ceiling limit (presently Rs.15,000/-) and such establishment chooses not to pay any Provident Fund contribution, there cannot be any proceedings initiated under Section 7A of the 1952 Act as all the employees of such establishment would then fall within the definition of '*excluded employee'* under Paragraph 2(f) of the 1952 Scheme.

10. The contention of the learned counsel for the petitioners with reference to the provisions of Section 12 of the 1952 Act also does not appeal to this Court. Section 12 of the 1952 Act *inter alia* provides that no employer shall in relation to an establishment, to which any Scheme or Insurance Scheme applies shall, by reason only of his liability for payment of any contribution to the Fund or the Insurance fund or any charges under the 1952 Act or the Scheme or the Insurance Scheme, reduce, whether directly or indirectly, the wages of any employee to whom the Scheme or the Insurance Scheme applies. The failure on the part of the employer (4th respondent) to pay contribution above the ceiling limit for the period from April 2002 to July 2010 and his act of paying contribution

on salary of Rs.20,000/- for the period from July 2010 to the date on which each of the petitioners herein had exited from the 1952 Scheme and the Pension Fund Scheme cannot under any circumstances be considered as a violation of Section 12 of the 1952 Act. Section 12 applies when wages are reduced in order to reduce liability for contribution under the 1952 Act and the Schemes framed thereunder. It does not apply when contributions are limited to the ceiling limit. In other words Section 12 applies to reduction of 'wages' and not when contributions are paid only on ceiling limit.

11. The fact that the employees were contributing throughout on the basis of actual salary also does not entitle the petitioners to seek the reliefs sought for in the writ petition. Admittedly for the period from April 2002 to July 2010 when the contributions were made only with reference to the statutory ceiling limit and thereafter, when the contributions were made for an amount of Rs.20,000/- in respect of each of the petitioners till the

date of their exit from the scheme by the employer (employer's share), the petitioners cannot at this point of time seek a direction from this Court that the amounts short paid by the employer be recovered from the employer or the petitioners be permitted to make up the short fall and thus receive the benefit of higher pension. As already held, it is clear from the provisions of the 1952 Act and the schemes framed thereunder that there is no compulsion on the employer to pay any contribution in respect of employees drawing wages above the ceiling limit. When the payment of contribution for employees drawing wages above the ceiling limit was purely optional, the employer cannot be compelled to remit any amount either by initiating a proceeding under Section 7A of the 1952 Act or otherwise.

12. In ***R.C.Gupta*** *(supra),* the Supreme Court while recognizing the right of the employees who exited from the scheme before 01.09.2014 to exercise the option under the proviso to Paragraph 11(3) of the Pension Scheme

categorically held that the payment of contribution in terms of the provisions contained in Paragraph 26(6) of the 1952 Scheme was '**inevitable**'. It is thus clear that the Supreme Court has on an interpretation of Paragraph 26(6) of the 1952 Scheme and Paragraph 11 of the Pension Scheme (as it stood prior to 01.09.2014) come to the conclusion that though there is no time limit for exercise of option in terms of the proviso to Paragraph 11(3) of the Pension Scheme (as it stood prior to 01.09.2014), such option could be exercised only if there were contributions on actual wages for the entire period during which the salary exceeded the ceiling limit. Admittedly, in the case of the petitioners that condition has not been satisfied. For the same reason the petitioners cannot now be permitted to make up the shortfall as such an exercise would then fall foul of the finding of the Supreme Court in ***R.C.Gupta*** (*supra*) that the exercise of option under Paragraph 26(6) of the 1952 Scheme was *'inevitable'*. The findings in ***R.C.Gupta*** (*supra*) have also been approved by the 3 judge bench in ***Sunil Kumar*** *(supra)*. The decision in ***Vivekananda Vidyamandir*** *(supra)* has no application to the facts of this case.

No other point has been raised. For all the aforesaid reasons, I find that the petitioners are not entitled to the reliefs sought for in the writ petition. The writ petition fails and it is accordingly dismissed.

Sd/-
GOPINATH P.
JUDGE

rkj/ats/DK

APPENDIX OF WP(C) NO. 21029 OF 2019

PETITIONERS’ EXHIBITS

EXHIBIT P1	TRUE COPY OF THE COMMON JUDGMENT IN W.P.C.NO.34791/2016 DATED 12/10/2019.
EXHIBIT P2	TRUE COPY OF THE APPLICATION PREFERRED BY PETITIONER NOS.45.
EXHIBIT P2 (a)	TRUE COPY OF THE APPLICATION PREFERRED BY PETITIONER NOS.46.
EXHIBIT P3	TRUE COPY OF THE REPLY ISSUED TO EXHIBIT P2 APPLICATION.
EXHIBIT P3(a)	TRUE COPY OF THE REPLY ISSUED TO EXHIBIT P2(a) APPLICATION.
EXHIBIT P3(b)	TRUE COPY OF THE REPLY DATED 03/04/2019 ISSUED BY THE 2ND RESPONDENT.
EXHIBIT P4	TRUE COPY OF THE REPRESENTATION SUBMITTED BY THE PETITIONER.
EXHIBIT P4(a)	TRUE COPY OF THE REPRESENTATION SUBMITTED BY THE PETITIONER.
EXHIBIT P4(b)	TRUE COPY OF THE REPRESENTATION SUBMITTED BY THE PETITIONER.
EXHIBIT P4(c)	TRUE COPY OF THE REPRESENTATION SUBMITTED BY THE PETITIONER.
EXHIBIT P4(d)	TRUE COPY OF THE REPRESENTATION SUBMITTED BY THE PETITIONER.
EXHIBIT P4(e)	TRUE COPY OF THE REPRESENTATION SUBMITTED BY THE PETITIONER.
EXHIBIT P4(f)	TRUE COPY OF THE REPRESENTATION SUBMITTED BY THE PETITIONER.
EXHIBIT P4(g)	TRUE COPY OF THE REPRESENTATION SUBMITTED BY THE PETITIONER.
EXHIBIT P4(h)	TRUE COPY OF THE REPRESENTATION SUBMITTED BY THE PETITIONER.
EXHIBIT P5	TRUE COPY OF THE REPLY DATED 12/06/2019 BEARING NO.KR/TVM/LEGAL CELL/HC-1568/WP(C) 35791/2016/1406.
EXHIBIT P5(a)	TRUE COPY OF THE REPLY DATED 11/06/2019 BEARING NO.KR/TVM/LEGAL CELL/HC-1568/WP(C) 35791/2016/1404.

EXHIBIT P5(b)	**TRUE COPY OF THE REPLY DATED 12/06/2019 BEARING NO.KR/TVM/LEGAL CELL/HC-1568/WP(C) 35791/2016/1403.**
Exhibit P6	**TRUE COPY OF THE RELEVANT PAGES OF THE E-NEWSPAPER DATED 10TH SEPTEMBER, 2025**
Exhibit P7	**TRUE COPY OF THE JUDGMENT DATED 25/02/2020 IN W.P.C NO. 2166 OF 2020.**

RESPONDENT’S EXHIBIT

Exhibit R2(a)	**TRUE COPY OF THE ORDER DATED 10/10/2017 IN RP NO. 34 OF 2017**